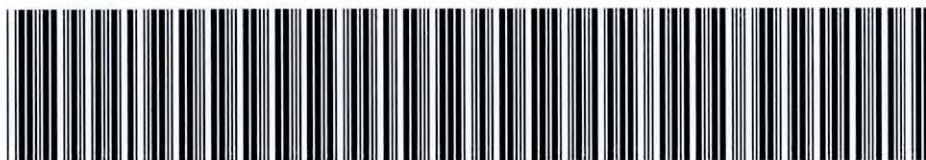


EWR D&I ANNOTATION



FAN-000001L071001DP463-7466

Artemis # : 000001L071001DP463**Record Created Date :** 10/26/2007**Printed Date :** 10/29/2007

Description : A PRELIMINARY REPORT SUMMARY WAS THE ONLY DOCUMENT SUBMITTED FROM THE VEHICLE MANUFACTURER FOR REVIEW. THE DOCUMENT INDICATED THAT THE SUBJECT VEHICLE WAS INVOLVED IN A TWO VEHICLE HEAD ON COLLISION. BOTH DRIVERS SUFFERED FATAL INJURIES. THE VEHICLE MANUFACTURER DID NOT SUBMIT AN ASSESSMENT OF THIS FATAL CRASH EVENT.



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE
Washington, DC 20590

AUG 13 2007

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-064

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 1st quarter of 2007. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 13, 30, 32, 105, 108, 109, 133, 139, 151, 217, 235, 258, 284, 319, 383, 463, 465, 466	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **September 7, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-1767.

Sincerely,

A handwritten signature in cursive script, appearing to read "Leo Yon for", is written over the typed name and title of Christina Morgan.

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

9/7/07 *wt*

September 6, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217ph
DI07-064

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated August 13, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 1st quarter of 2007.

GM's response is comprised of 19 discs for the incidents that are the subject of DI07-064.

Attachment "A" includes instructions for navigating the disc. Each disc, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 465 217575583-629372 and 2007 Saturn Ion. When the disc is launched, this identification number appears again along with all of the documents on the disc (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 465 217575583-629372_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the disc are as follows:

DI07-064
465 217575583 - 629372
2007 Saturn Ion

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document and photographs.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

465 217575583 - 629372_01_001 - is the first document responsive to Inquiry no. 1.
465 217575583 - 629372_02_001 - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-064 Response.doc



Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See Attached Document.

The table below lists the incidents that are the subject of DI07-064, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed disc for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

<i>(18 Vehicles from the Light Vehicle Template)</i>			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
13	1G4HD57276U		NISM
30	3G5DA03E24S		NISM
32	3G5DA03L36S		NISM
105	1G1AZ55F977		RUMOR
108	1GCDS196258		NISM
109	1GCCS138868		RUMOR
133	2G1WH55K939		NISM
139	2G1WH52K659		RUMOR
151	2G1WT55K379		NISM
217	1GCEK14T93Z		NISM
235	2GCEC13V361		NISM
258	1GBJC34214E		NISM
284	1GNFK13027R		NISM
319	1GNDV23L76D		NISM
383	1GKEC13Z74R		LIT
463	1G8AJ55F06Z		NISM
465	1G8AJ55F37Z		NISM
466	1G8AJ55F17Z		RUMOR

2. **Provide a copy of the Police Accident Report.**

Response: See attached document and photographs.

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

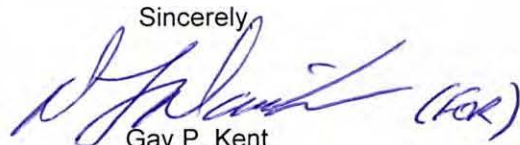
To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

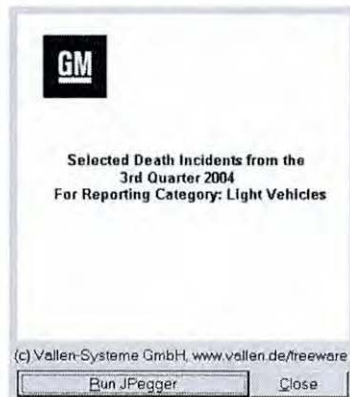


Gay P. Kent
Director
Product Investigations

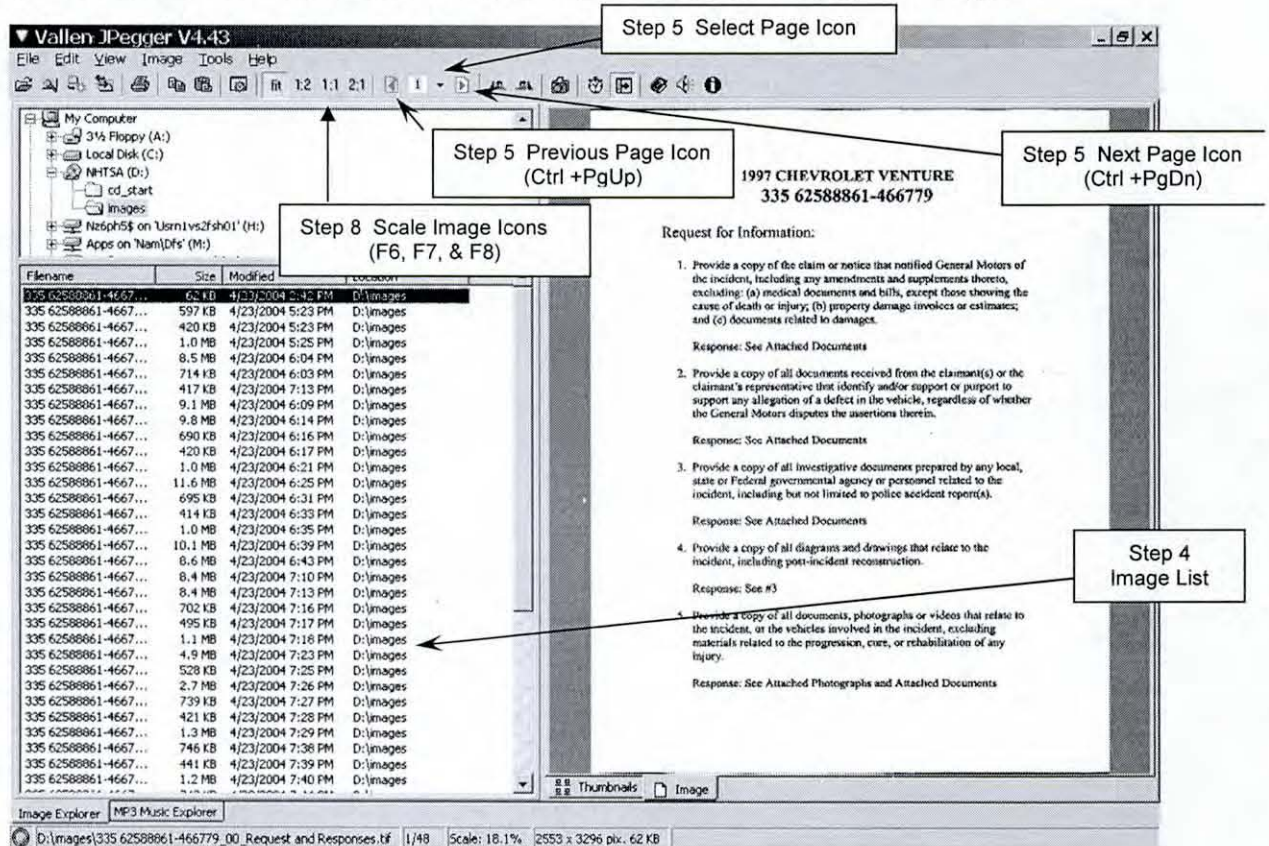
Enclosures: 19 Discs
Attachment A

Attachment A Instructions for using disc Viewer

1. Insert the disc into the disc ROM drive; the disc will open automatically.
2. Click the "Run JPepper" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)
 FOR COURT USE ONLY

ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO: 909-469-5127 FAX NO: 909-469-5126
 ATTORNEY FOR PLAINTIFFS
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 SAN DIEGO COUNTY

CASE NAME: CARRONDA V. CHEVROLET

CIVIL CASE COVER SHEET
☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1011)

CASE NUMBER
 ASSIGNED JUDGE

Please complete all five (5) items below:

1. Check one box below for the case type that best describes the case:

☒ Auto Tort (22)
☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Activities (24)
☐ Product Liability (24)
☐ Medical Malpractice (45)
☐ Other PIP/DWD (22)
☐ Non-PIP/DWD (Other) Tort
☐ Business tort/other business practice (27)
☐ Civil rights (e.g., discrimination, false arrest) (28)
☐ Defamation (e.g., slander, libel) (12)
☐ Fraud (16)
☐ Intellectual property (15)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWD tort (20)
☐ Employment
☐ Wrongful termination (30)

☐ Contract
☐ Breach of contract/negligence (26)
☐ Collection (e.g., money owed, open book account) (29)
☐ Insurance coverage (18)
☐ Other contract (37)
☐ Real Property
☐ Eminent domain/tortious interference with contract (14)
☐ Wrongful eviction (23)
☐ Other real property (e.g., quiet title) (20)
☐ Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
☐ Judicial Review
☐ Asset forfeiture (26)
☐ Pollution or contamination lawsuit (11)

2. This case ☒ is ☐ is not complex under rule 1000 of the California Rules requiring exceptional judicial management:
 a. ☒ Large number of separately represented parties b. ☒ Large number of coordination or joinder issues that will be time-consuming to resolve
 c. ☒ Substantial amount of documentary evidence d. ☐ Substantial post-trial issues

3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐ Other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836
 (TYPE OR PRINT NAME)

NOTICE
 Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (see under the Probate, Family, or Welfare and Institutions Code). (Cal. Rules of Court, rule 1000)
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1000 of the California Rules of Court, you must also provide to the court or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From Approved by the Judicial Branch of the State of California
 982.2(b)(1) (Rev. January 1, 2002)

CIVIL CASE COVER SHEET

Next Image
 Previous Image
 Next page Ctrl+PgDn
 Previous page Ctrl+PgUp
 Full screen image Ctrl+F11
 Slide show F10
 Fit Scale to fit F5
 1:2 Scale 50% F6
 1:1 Scale 100% F7
 2:1 Scale 200% F8
 Rotate left Ctrl+Alt+L
 Rotate right Ctrl+Alt+R
 Rotate by 180°
 Copy to clipboard
 Copy file to... Ctrl+C
 Move file to... Ctrl+X
 Rename file... F2
 Delete file... Del
 Exit Image Information...
 Preferences... Ctrl+R

Step 7 Next File (Image)
 Step 7 Next page
 Step 8 Scale Image
 Step 7 Image Properties

DI07-064
463 217575671 – 629908
2006 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: None.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Preliminary Research Form Form

Caller Name *
Subscriber Name *
Vehicle Owner Name *

Phone *

Address * MS Monticello

VIN *
 1G8AJ55F062

Incident Date *
 3/1/2007

Incident Time *
 3:00 PM

Was the vehicle involved in a collision? Yes or No?
 yes

Driver at time of incident

Bodily Injuries Yes or No *
 Yes

If Yes Detailed Description for each individual and were any of the Injured Occupants Minors? *
 Subscriber was killed

Detailed description of Alleged defect other than OnStar?
 n/a

Airbag Deployment/ Emergency Key Press Or AACN? *
 Airbag deployment

Detailed Description of Incident *
 Two vehicles were involved in a head-on collision on a two lane road in a rural area both drivers perished

Make * Saturn
Model * Ion
Year * 2008

Current Location of Vehicle: Include Name/Address/Phone Number *
 State Farm Insurance has removed vehicle from Monticello wreck yard

Property Damage to Others *
 n/a

Any other Information
 location of accident -CR Forest Grove near HWY 27 in Monticello, MS

Was Battery Damaged Y or N *
 uncertain

Was there power to the vehicle after the event *
 uncertain

Were you able to use your cell phone from the accident location *
 n/a

(If other vehicles involved?)

Airbag Deployment & Emergency Key Research:

Advisor:

1. Verify whether or not OnStar Call Center received the air bag deployment call on the date in question. Check both 2.9 and 3.0 for a record of the call.

No record of call

2. Pull all comments from 2.9, 3.0 and CCTS applications from at least 90 days prior to alleged airbag deployment to present day. (Pay close attention for hardware replacements, reconfigurations, and customer complaint concerns.) Do we have a record of the reconfiguration? If no, use STID to research.

INCLUDE THE CCTS COMMENTS THAT ARE DIRECTLY RELATED TO THE CUSTOMER CALLING ONSTAR TO REPORT THAT THE AIRBAG DEPLOYED BUT ONSTAR DID NOT RESPOND.

3.0 shows no key presses in history of account

CCTS # (b) (6) 3/7/07 ms (sister of acct owner) called in to complain about an emergency situation last time, airbags deployed but no contact from OnStar happened. Subscriber DIED due to accident. wants to file a formal complaint.

3. If Geo MIN in the account check OPC V4.1 for MIN status. If 500 MIN, check WINN4 Provisioning for MIN status.

WINN4 says Min is active

4. Verify Make, Model, and Year of vehicle as well as type of hardware. (Example: 2002 Cadillac Deville with F1 hardware).
2006 Saturn Ion Gen 6.0
5. If VSP hardware, verify active cell phone service with local carrier.
N/A
6. If comments show hardware replacements, check GM VIS Warranty History to verify. URL: <http://preprod.iweb.gm.com:8056/GMVIS/index.html>
N/A
7. If hardware replacement is confirmed, follow-up with OTAC to retrieve Vantive Case comments.
N/A
8. Verify account and vehicle status on date of crash: active, inactive, in set-up, closed, cancelled, etc..... Active
9. If no record of the call is found, open a Vantive ticket with the help desk. Provide the ESN, STID, MIN and date and time of alleged incident (approximate time is important!). Ask the help desk to forward the ticket to telephony and have them check commapp and edify for a record of the call. This verifies whether the call made it to the center and was mis-processed at the center.
No data returned for mdr (b) (6) on 3/1/07
10. Cellular research: If the Geo MIN is in the vehicle, email MIN, ESN, Date, Time, and location of incident to Tom Gault. If the 500# is in the vehicle, then provide the above information to Tom as well. HOWEVER, if the 500# is in the vehicle, we only have 7 days to conduct research with Verizon. If after 7 days and the 500# is in the vehicle, document this information in CCTS and do not contact Tom. Rakib Jummani is Tom's back-up.
See #9 above